BILLY BOY JOSEPH (In his capacity as the Executor Testarrentary of the Estate Late Stephenson Joseph Joseph DR 3094/02)
versus
TIMOTHY MWAPINZEUDYI
and
THE MASTER OF THE HIGH COURT OF ZIMBABWE
and
THE REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 16 January 2026 & 26 March 2026

Cancellation of a Title Deed

G R J Sithole & A Kadye, for the Applicant
N Chikono, for the 1st Respondent
No appearance for the 2nd & 3rd Respondents

MAXWELL J: Applicant approached the court seeking the cancellation of tittle deed number 1325/2025 registered in favour of the first Respondent and revival of title deed number 629/25. Applicant stated that he is the only biological child of the late Stephenson Joseph Joseph who died on 15 June 1998. During his lifetime, deceased acquired an immovable property being the remainder of lot 33 block MM Ardbennie Township of Ardbennie, Salisbury District. The property was registered in the deceased's name under deed of transfer 629/25. The deceased left a will which appointed applicant as the executor testamentary of his estate. The will was registered and accepted by the second Respondent.

Following the demise of his further, Applicant and other relatives registered the estate under DR 3094/02. Applicant was confirmed as the Executor Testamentary and letters of administration were issued to him. Applicant stated that due to lack of funds he was not able to facilitate the finalization of the estate. He also had serious medical challenges. On 17 May 2023 Applicant went to the second Respondent seeking to appoint one David Fortune Chitengu as an executor dative on his behalf. Applicant avers that he had realized that there had been forging of documents by several people including the first Respondent seeking to

grab the immovable property. David Fortune Chitengu was duly appointed executor dative of estate late Stephenson Joseph Joseph. Letters of administration were issued to him, However, on 3 January 2025 David Fortune Chitengu was removed as Executor dative and applicant was reinstated.

Applicant averred that first Respondent was a tenant at his father's property since the passing on off his father. Applicant did not collect any rentals from him. He alleged that first Respondent forged an affidavit to the effect that Applicant had sold the property to him for about ZW $ 11 953 458.00. He disputed entering into an agreement of sale with the first Respondent and also disputed ever being in Mutare where the forged affidavit was deposed to. Applicant submitted that first Respondent filed an application to compel transfer in Mutare Magistrate's Court. On 26 May 2021 an order was granted in default and first Respondent used that order to compel third Respondent to register the property in his name.

Applicant disputed the jurisdiction of Mutare Magistrates' court to deal with the matter. He pointed out that second Respondent was neither informed nor consented to the alleged sale of the property. Further that at the time of the application, he had not been appointed executor and second Respondent was not cited in the proceedings. Applicant averred that first Respondent was aware that the property belonged to a deceased estate and deliberately omitted to cite the second Respondent.

Acting on the order from Mutare Magistrates' Court, third Respondent issued a new deed of transfer to the first Respondent under deed number 1325/2025. Applicant stated that he tried to engage the first Respondent and the third Respondent to reverse or cancel the deed without success.

First Respondent opposed the application. He raised a point *in limine* to the effect that the relief sought is incompetent. First Respondent submitted that Applicant ought to seek the nullification of the Magistrates' Court Order first. On the merits he disputed that he was a tenant and stated that he never paid rent. He disputed forging an affidavit and insisted that Applicant went to Mutare and signed the affidavit. He insisted that he paid Applicant for the main house and signed an agreement and the affidavit. He stated that the Applicant was served with the court process from Mutare Magistrates' Court but chose not to contest it resulting in a default judgment.

First Respondent submitted that Applicant had advised him that second Respondent had granted the consent to sell the property and showed him a copy signed by one D Gutu. Further that he was taken to the second Respondent's office where he paid the Master's fees

and that in 2022 he paid for the gazzeting and advertisement of the distribution account at Mandizvidza Magaya Legal Practitioners at applicant's instance. He confirmed that he was aware that the property belonged to a deceased estate. He insisted that he paid ZW$ 12 000,00 for the property. He paid at a time the USD was legal tender.

In answer applicant asserted that the jurisdictional and procedural irregularities in the proceedings before Mutare Magistrates' Court render the proceedings null and *void ab initio* and cannot be relied upon to defeat his claim. On the merits, he insisted that he did not sell the property to the first Defendant and that first Defendant was a tenant at the property. He pointed out that the agreement of sale attached by the first Defendant does not include the attestation clause. He averred that the omission strongly suggests that his signature was never appended to the agreement. He further averred that the first consent to sale was issued on 3 December 2021. He nullified it as he did not want to proceed with the sale. He argued that first Respondent cannot rely on a nullified consent to sale.

Preliminary Point

Applicant argued that the Mutare Magistrates' court lacked the territorial jurisdiction to deal with the property in question as the property is in Harare. He disputed ever going to Mutare. On the other hand, the first Respondent argued that Applicant ought to have first sought rescission of the extant order from Mutare Magistrates' Court which resulted in the transfer of the property to him.

First Respondent submitted that the Applicant went to Mutare and he paid him for the main house and signed an agreement there together with the affidavit.

Paragraph 22 of the Opposing Affidavit is couched as follows;

> "22. Ad paragraphs 19 and 20
> This is denied. The cause of action arose in Mutare and the Applicant agreed to have the dispute also resolved in Mutare and subjected himself to the jurisdiction of that court as contained in clause 9.5 of Annexure "E". The advice was there based on false facts given to his lawyers."

Applicant did not dispute that he was paid for the main house. He did not dispute that the cause of action arose in Mutare. He further did not dispute that he subjected himself to the jurisdiction of the Mutare Magistrates' Court. This, coupled with the existence of an affidavit sworn to at Mutare and a return of service issued by the Mutare Court personally served on the first Respondent by the messenger of court for Harare, leads to the conclusion that the objection to the jurisdiction of the Mutare Magistrates' Court is an afterthought.

In any event, the return of service confirms personal service. Applicant ought to have attended court and challenged its jurisdiction. Moreover, as a default order was granted, Applicant ought to have first sought its rescission and then proceed to challenge the jurisdiction. The fact that none of the above was done, the order issued by the Mutare Magistrates' Court is still extent. It is trite that an extant order of the court is to be obeyed and given effect to until it is set aside by a court of competent jurisdiction. In *Mayor Logistics (Pvt) Ltd* v *Gluoxing Gong and others* HH 5/16 it is stated

> "It is trite that parties are bound to perform in terms of an order as long as that order is extant. This is true even when a judicial officer misdirects themselves in reaching their decision. See *Ritenote Printers (Pvt) Ltd* v *A Adam & Coal Another* SC 15/11. If a party feels aggrieved by a decision the proper course to take is to make an application to have the decision set aside failing which parties are bound to perform in terms of the order."

See also *Makombe* v *Munyoro* HH 590/23. The order from Mutare Magistrates' Court enjoys a presumption of validity until declared otherwise by a competent court of Law. See *Nhapata* v *Maswi & Another* SC 38/16. First Respondent is therefore correct is arguing that the first step Applicant ought to have taken was to challenge the extant order from Mutare Magistrates' Court.

Mr Sithole challenged the citation of the second Respondent in the order from the Magistrates' Court. He argued that a deceased estate is cited through a natural person representing it. According to him, the estate was not a participant and therefore there is no default order against it. He further submitted that the citation ought to have been Billy Boy Joseph in his capacity as the executor.

The order from Mutare Magistrates' Court shows that second Respondent was "Executor Estate Late Stevenson Joseph Joseph."

It is not the estate, but the executor who was cited as the second Respondent. In my view, the failure to state the name of the Executor cannot be fatal. It is not accurate that the estate was not party to the proceedings in the court *a quo.*

It was also argued for the Applicant that the order was null and void as the Master of the High Court was not made party to the proceedings involving a deceased estate as required under Rule 61 of SI 202 of 2021. The rule does not require that the Master be made a party to the proceedings. It simply mandates service of the application on him not less than ten days before the date of set down. He is given the discretion whether he submit a report or not. The non-citation of the Master is therefore not fatal in the proceedings before the court *a quo.*

Overally, all the objections that the Applicant has against the order that resulted in the transfer of the property to the first Respondent are ineffective in the face of the presumption of validity of the court order.

The objection by the first Respondent therefore has merit, it succeeds. It is not necessary to delve into the merits of the case.

The following order is appropriate.

1. The preliminary point be and is hereby upheld.
2. The application be and is hereby struck off the roll with costs.

MAXWELL J:……..

Nyama Law Chambers, Applicant's Legal Practitioners
Moyo Chikono & Gumino, 1st Respondent's Legal Practitioners